

to follow *Robinson v. Lowater*, and held the power of sale to be, according to the report, in the *trustees*, but which appears to be a mistake for the *executors*. The surviving trustee had devised the trust estate, and the devisee therefore could not sell, but the surviving trustee was also surviving *executor*, and appointed the devisee his *executor*, and in the character of *executor* the devisee might be thought to represent the original testator, though it seems the better opinion that even then the power of sale would not pass to him (*c*). In *Wrigley v. Sykes* (*d*), the Master of the Rolls decided that the executors could contract for the sale of the estate, but guarded himself by saying that the Court, as far as it could, would certainly secure to the purchaser a good legal estate when the conveyance was made. It is conceived that *Doe v. Hughes* was a perfectly sound decision upon the legal question, but that the executors have an *equitable power of sale*, and consequently that the holder of the legal estate is a trustee for them (*e*). [This power of sale is implied because the executors are appointed by the testator to pay his debts, but such a power has never been implied in an administrator who is not appointed by the testator, but is the officer of the Probate Court (*f*).]

Lord St. Leonards' Act.—By Lord St. Leonards' Act, 22 & 23 Vict. c. 35, s. 16, as to wills taking effect since 13th August, 1859, where a testator *charges* his debts or any *legacy* or *specific sum*, and has *not devised the estate to a trustee or trustees*, the *executor* for the time being may sell or mortgage (*g*); and by the 23d section, the purchaser or

appear how the purchaser had got or was to get the legal estate, whether from the executor, as having a legal power, or from the trustee, on the construction that the legal fee simple vested in the trustee under the will, or from the trustee, as having the legal estate during the life of H. Toulmin, with the concurrence of H. Toulmin, as having the legal estate in remainder, so as to extinguish his power of appointing by will. The case loses much of its force from the amicable manner

in which the point was submitted to the Court.

(*c*) See Sugd. Powers, 129, 8th ed.

(*d*) 21 Beav. 337; and see Colyer v. Finch, 5 H. L. Cas. 922; Cook v. Dawson, 29 Beav. 123; Greetham v. Colton, 34 Beav. 615.

(*e*) See Tanqueray-Williaume and Landau, 20 Ch. D. 465.]

(*f*) *Re Clay and Tetley*, 16 Ch. D. 3.]

(*g*) Where one executor has renounced probate, the acting executors